



REPRESENTATION OF PEOPLE (AMENDMENT) ORDINANCE, 2002

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REPRESENTATION OF PEOPLE (AMENDMENT) ORDINANCE, 2002.

ORDINANCE XXXVI OF 2002

An

Ordinance

further to amend the Representation of the People Act, 1976

WHEREAS it is expedient further to amend the Representation of People Act, 1976 (LXXV of 1976), for the purposes hereinafter appearing:

AND WHEREAS the President is satisfied that the matter require immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the 14th day of October, 1999, the Provisional Constitution Order No. 1 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Representation of the People (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 8, Act LXXXV of 1976. In the Representation of the People Act, 1976 (LXXXV of 1976), hereinafter referred to as the said Act, in section 8, for sub-section (4) the following shall be substituted, namely:-

"(4) A polling station shall be situated in a Government building for the constituency and, where no Government building is available for" the purpose, an improvised polling station shall be set up on a public property:

Provided that no polling station shall be located in any premises which belong to, or are under the direct or indirect-control of, any candidate."

3. Amendment of section 9, Act LXXXV of 1976. In the said Act, in a section 9, in sub-section (1), after the words "polling officers", the words and comma "from amongst the officers of the Federal Government, Provincial Governments, local governments and corporations established or controlled by such Governments" shall be inserted.

4. Amendment of section 11, Act LXXXV of 1976. In the said Act, in section 11, in sub-section (1),-

- (a) after the words "As soon as", the words and comma "may be necessary and practicable," shall be inserted;
- (b) in clause (b), for the word "two" the word "seven" shall be substituted; and.
- (c) in clause (e), for the word "sixth" the word "seventh" shall be substituted.

5. Amendment of section 12, Act LXXXV of 1976. In the said Act, in section 12,-

- (a) for sub-section (2), the following shall be substituted, namely:-

"(2) Every nomination shall be made by a separate nomination paper in the prescribed form which shall be signed both by the proposer and the seconder and shall, on solemn affirmation made and signed by the candidate, accompany-

- (a) a declaration that he has consented to the nomination and that he fulfils the qualifications specified in Article 62 and is not subject to any of the disqualifications specified in Article 63 or any other law for the time being in force for being elected as a member;
- (b) a declaration about his party affiliation, if any, alongwith a certificate from the political party showing that he is a party candidate from the constituency for which nomination papers are being filed;
- (c) a declaration that no loan for an amount of two million rupees or more, obtained from any bank, financial institution, cooperative society or corporate body in his own name or in the name of his spouse or any of his dependents, or any business concern mainly owned by him or the aforesaid, stands unpaid for more than one year from the due date, or has got such loan written off;
- (d) a declaration that he, his spouse or any of his dependents or a business concern mainly owned by him or the aforesaid, is not in default in payment of government dues or utility charges, including telephone, "electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six months, at the time of filing of nomination papers;
- (e) a statement specifying his educational qualifications, occupation, National Identity Card number and National Tax Number, if any, alongwith attested copies thereof; and
- (f) a statement of his assets and liabilities and those of his spouse and dependents on the prescribed form as on the preceding thirtieth day of June;

Explanation.- For the purpose of this section, the expression

- (i) "loan" shall mean any loan, advance, credit or finance obtained or written off on or after the 31st day of December, 1985, but shall not include the loan the recovery of which has been stayed or suspended by any order of a court or tribunal, including the High Court and the Supreme Court.

- (ii) "mainly owned" shall mean holding or controlling a majority interest in a business concern;
- (iii) "taxes" include all taxes levied by Federal Government, Provincial Government or a local government, but shall not include taxes the recovery of which has been stayed or suspended by any order of a court or tribunal;
- (iv) "government dues and utility charges" shall, inter alia, include rent, charges of rest houses or lodges owned by the Federal Government, Provincial Governments, local governments or corporations established or controlled by such governments, but shall not include the government dues and utilities, charges the recovery of which has been, stayed or suspended by any order of a court or tribunal."; and

(b) after sub-section (7), the following new sub-section shall be added; namely:-

"(8) The nomination form and accompanying declarations and statements shall be open to inspection by the public and copies thereof may be made available by the Commission in such manner and on payment of such fee as may be prescribed."

6. Amendment of section 14, Act LXXXV of 1876. In the said Act; in section 14,-

(a) in sub-section (1),-

- (i) after the words "each candidate", the words and comma "and an elector who has filed an objection to the nomination of a candidate," shall be inserted ; and
- (ii) after the word, figure and colon "section 12" the following proviso shall be added a namely,-

"Provided that an elector who has filed an object. ion to the nomination of a candidate shall only attend the scrutiny of the nomination paper of that candidate.";

(a) in sub-section (3),-

- (i) after the word and comma "objection,", the words "either by an elector or" shall be inserted;
- (ii) in clause (c), after the word "with", the words "or submits any false or incorrect declaration or statement in any material particular"; and
- (iii) in the proviso, after clause (i), the following new clause shall be added, namely:-

(1a) the Returning Officer may, for the purpose of scrutiny, require any agency or authority to produce any document or record;"

(b) after sub-section (3), amended as aforesaid, the following new sub-section shall be inserted, namely:-

(3A) Notwithstanding anything contained in subsection (3), where a candidate deposits any amount of loan, tax or utility charges payable by him before rejection of his nomination paper on the ground of default in payment of such loan, taxes or utility charges, such nomination paper shall not be rejected for default thereof."; and

(c) after sub-section (5), the following new sub-section shall be inserted, namely:-

"(5A) If, on the basis of any information or material brought to its knowledge by any source, a Tribunal constituted under sub-section (5) is of the opinion that a candidate whose nomination papers have been accepted is a defaulter of loan, taxes government dues or utility charges or has had any loan written off or suffers from any other disqualification from being elected as a member of an Assembly, it may, on its own motion, call upon such candidate to show cause why his nomination papers may not be rejected, and if the Tribunal is satisfied that the candidate is actually a defaulter as aforesaid or has had a loan written off or suffers from any disqualification, it may reject the nomination papers."

7. Amendment of section 33, Act LXXXV of 1976. In the said Act, in section 33,-

(a) in sub-section (1), after the brackets, letters, word and figure "(LVI of 1973)", the words, comma, figures, brackets and letters "or issued under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000)" shall be added;

(b) in sub-section (2), in clause (e), after the words and comma "electoral roll,", the words "the number of the National Identity Card of the elector" shall be inserted; and

(c) in sub-section (3),-

(i) in clause (a), after the brackets, letters, word and figure "(LVI of 1973)", the words, comma, figures, brackets and letters "or issued under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000)" shall be added; and

(ii) clause (b) shall be omitted.

8. Amendment of section 42, Act LXXXV of 1976. In the said Act, in section 42,-

(a) after sub-section (3), the following new sub-section shall be inserted, namely:-

"(3A) Every returned candidate shall, within ten days from the poll of an election, submit a return of election expenses in accordance with the provisions of section 50."; and

(b) in sub-section (4), for the full stop at the end a colon shall be substituted and thereafter the following proviso shall be added, namely:-

"Provided that the result of a returned candidate shall not be published who fails to submit the return of expenses specified in sub-section (3A)."

9. Insertion of new section 42A, Act LXXXV of 1976. In the said Act, after section 42, the following new section shall be inserted; namely:-

"42A. Yearly submission of statements of assets and liabilities.-(1) Every member shall, on a form prescribed under clause (f) of sub-section (2) of section 12, submit a statement of assets and liabilities of his own, his spouse and dependents annually to the Commission by the thirtieth day of September each year.

(2) The statements of assets and liabilities submitted under sub-section (1) shall be published in the official Gazette and copies thereof may be obtained on payment of prescribed fee.

(3) The Commissioner shall, by the fifteenth day of October each year, notify the names of the members who fail to file statements of assets and liabilities within the period specified in sub-section (1) and by an order, direct that such member shall cease to function till such statement is submitted.

(4) Where a member submits the statement of assets and liabilities under sub-section (1) which is found to be false in material particulars, he may be proceeded against under section 82 for committing the offence of corrupt practice."

10. Substitution of Chapter V-A, section 47A, Act LXXXV of 1976. In the said Act, for section 47A the following shall be substituted, namely,

" CHAPTER V-A

Election to reserved seats

47A. Party lists for reserved seats, etc.-(1) For the purpose of election to seats reserved for women and non-Muslims in the National Assembly and Provincial Assemblies, the political parties contesting election for such seats shall, within the period fixed by the Election Commission for submission of nomination papers, file separate lists of their candidates in order of priority for seats reserved for women and non-Muslims with the Chief Election Commissioner or, as he may direct, with the Provincial Election. Commissioner, who shall forthwith cause such lists to be published for information of the public at large.

(2) The parties' lists referred to in clause (1) may contain as many names of additional candidates as a political party may deem necessary for contesting seats reserved for women and non-Muslims to provide for any disqualification of candidates during scrutiny of nomination papers or for filling of any vacant seat during the terms of National Assembly and Provincial Assemblies, as the case may be.

(3) Whereas seat reserved for woman or non-Muslims in the National Assembly or a Provincial Assembly falls vacant for death, resignation or disqualification of a member, it shall be filled in by the next person in order of precedent from the party's list of the candidate submitted to the Election commission under clause (1).

(4) Every candidate contesting election on a seat reserved for women or non-Muslims shall, alongwith the nomination papers and other relevant documents, submit to the Returning Officer appointed by the Election Commission in this behalf-

- (a) a copy of the party list of the candidate"s political party for such seats;
- (b) declarations and statements as required by law or rules in support of the nomination; and
- (c) the fee required under any law for the time being in force for filing nomination papers.

11. Addition of sections 48, 49, 50 and 51 Act LXXXV of 1976. In the said Act, after section 47A, the following new sections shall be added, namely:-

"48. Definitions.- For the purpose of this Act, "election expenses" means any, expenditure incurred before, during and after an election or payment made, whether by way of gift, loan, advance, deposit or otherwise, for the arrangement, conduct or benefit of, in connection with or incidental to the election of a candidate, including the expenditure on account of issuing circulars or publications, but does not include the deposit made under section 13.

49. Restriction on election expenses.- (1) No person other than the candidate shall incur any election expenses of such candidate:

Provided that where any person incurs any election expenses on behalf of such candidate, whether for stationery, postage, telegrams, advertisement, transport or for any other item whatsoever, such expenses shall be deemed to be the election expenses incurred by the candidate himself.

(2) The election expenses of a contesting candidate shall not exceed, in the case of an election to a seat in the National Assembly, one million and five hundred thousand rupees and, in the case of an election to a seat in a Provincial Assembly, one million rupees.

(3) A candidate shall, through bills, receipts and other documents, vouch for every payment made in respect of election expenses, except where the amount is less than five hundred rupees.

50. Return of election expenses.- (1) Every contesting candidate, other than the returned candidate, shall submit the return of his election expenses within thirty days of the publication of the name of the returned candidate.

(2) The return of election expenses of the returned candidate referred to in sub-section (3A) of section 42 and of every contesting candidate referred to in sub-section (1) shall be submitted to the Returning Officer in the prescribed form containing-

- (a) a statement of all payments made by him together with all bills and receipts;
- (b) a statement of all disputed claims;

(c) a statement of all unpaid claims, if any; and

(d) a statement of all moneys, securities or equivalent of money received from, or spent, by any person for the benefit of the candidate, specifying the name of every such person.

(3) The returns submitted under sub-section (2) shall be accompanied by an affidavit of the candidate in the prescribed form.

51. Inspection of returns, etc.- (1) The returns and documents submitted under section 50 shall be kept by the Returning Officer in his office or at such other convenient place as he may think fit and shall, during one year from the date of their receipt by him, be open to inspection by any person on payment of the prescribed fee.

(2) The Returning Officer shall, on an application made in this behalf and payment of the prescribed fee, give any person copies of any return or document kept under sub-section (1)."

12. Amendment of section 67, Act LXXXV of 1976. In the said Act, in section 67, after sub-section (1), the following new sub-sections shall be added, namely:-

"(1A) The Election Tribunal shall proceed with the trial of the election petition on day to day basis and the decision thereof shall be taken within four months from its receipt:

Provided that where the delay in the proceedings is occasioned by any act or omission of a returned candidate or any other person acting on his behalf, the Tribunal shall refer to the Commissioner that such candidate may be declared by the Commission to have ceased to perform the functions of his office either till the conclusion of the proceedings or for such period as the Commission may direct."

13. Insertion of new section 76A, Act LXXXV of 1976. In the said Act, after section 76, the following new sections shall be added, namely.

"76A. Additional powers of Election Tribunal.- (1) If an Election Tribunal, on the basis of any material coming to its knowledge from any source or information laid before it, is of the opinion that a returned candidate was a defaulter of loan, taxes, government dues or utility charges, or has submitted a false or incorrect declaration regarding payment of loans, taxes, government dues or utility charges or has submitted a false or incorrect statement of assets and liabilities of his own, his spouse or his dependents under section 12, it may, on its own motion or otherwise, call upon such candidate to show cause why his election should not be declared void and, if it is satisfied that such candidate is a defaulter or has submitted false or incorrect declaration or statement, as aforesaid, it may, without prejudice to any order that may be or has been made on an election petition, or any other punishment, penalty or liability which such candidate may have incurred under this Act or under any other law for the time being in force, make an order-

(a) declaring the election of the returned candidate to be void; and

(b) declaring any other contesting candidate to have been duly elected.

(2) If on examining the material or information referred to its sub-section (1), an Election Tribunal finds that there are reasonable grounds for believing that a returned candidate is a defaulter or has submitted a false or incorrect declaration referred to in sub-section (1) it may, pending decision of the motion under subsection (1), direct that the result of the returned candidate shall not be published in the official Gazette.

(3) No order under sub-section (1) or sub-section (2) shall be made unless the returned candidate is provided an opportunity of being heard."

14. Amendment section 78, Act LXXXV of 1976. In the said Act, in section 78,-

(a) before clause (2), the following new clause shall be inserted, namely :-

"(1) contravenes the provisions of, section (49);"; and

(b) in clause (3)-

(i) after the word "statement", the word "or submits false or incorrect declaration in any particular material" shall be added;

(ii) in sub-clause (b), after the word and semi-colon "candidate;", the word "or" shall be omitted; and

(iii) in sub-clause (c), after the word and semicolon "candidate;" the word "or" shall be added and thereafter the following new sub-clause shall be added, namely:-

(d)"in respect of his educational qualifications, assets and liabilities, or any liability with regard to payment of loans or adherence to party affiliation specified in sub-section (2) of section 12."

15. Amendment of section 83, Act LXXXV of 1976. In the said Act section 83, -

(a) in sub-section (1), before clause (b), the following new clause shall be inserted, namely :-

"(a) fails to comply with the provisions of section 50;"; and

(b) in sub-section (2), for the words "fine which may extend to two" the words "imprisonment for a term which may extend to six months and fine which may extend to five" shall be substituted.

16. Insertion of new section 83A, Act LXXXV of 1976. In the said Act, after section 83, the following new section shall be inserted, namely:-

83A. Prohibition of affixing hoardings, etc.-(1) No person or a political party shall affix posters, hoardings or banners larger than the sizes prescribed by the Election Commission;

Provided that such posters, hoardings or banners shall not be affixed nor parties flags shall be hoisted on any public property or at any public place, except with the permission in writing from, and on payment of such fee charges as may be chargeable by, the concerned local government or authorities.

(2) Wall-chalking as part of an election campaign is prohibited in all forms.

(3) Loudspeakers shall not be used for election, campaign except at the election meetings.

(4) The Zila Nazim and the Returning Officer shall be responsible for the effective implementation of the provisions of this section.

(5) The contravention of the provisions of sub-sections (1), (2) and (3) shall be punishable with imprisonment for a term not exceeding one year, or with fine; or with both."

17. Amendment of section 86A, Act LXXXV of 1976. In the said pct, in section 86A, in clause (a), after the word, figure and comma section 80," the word, figure and comma "section 83," shall be inserted.

18. Amendment of section 94, Act LXXXV of 1976. In the said Act, section 94 shall be renumbered as sub-section (1) of that section and hereafter the following new sub-sections shall be added, namely:-

(2) Notwithstanding anything contained in this Act or any other law for the time being in force, the offences of corrupt practice shall be tried by the Sessions Judge and an appeal against his order shall lie before a Division Bench of the High Court.

(3) Where proceedings against a person for being involved in corrupt practice are initiated on a complaint made by a private individual, and such person is convicted by the court and his conviction is maintained in final appeal, the complainant may be entitled to such reward payable out of the amount of fine as may be imposed by the court:

Provided that where such complaint proves to be false mala fide or is made for any ulterior motive to provide benefit to another person, the complainant shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both."

19. Amendment of section 99, Act, LXXXV of 1976. In the said Act, in section 99,-

(a) in sub-section (1),-

(i) for clause (b) the following shall be substituted, namely:-

"(b) he is, in the case of National Assembly, not less than twenty-five years of age and is enrolled as a voter in any electoral roll:

(i) in any part of Pakistan, for election to a general seat and minority seat; and

(ii) in a Province, from where such person seeks membership for election to a seat reserved for women;" and

(ii) in clause (c), for the words "for election to a Muslim seat or a non-Muslim seat as the case may be in" the words "as a voter in any area in a Province from where he seeks membership for" shall be substituted; and

(iii) after clause (c), amended as aforesaid, the following new clause shall be inserted, namely:-

"(cc) he is at least a graduate, possesses a bachelor's degree in any discipline or any degree recognized as equivalent thereto by the University Grants Commission under the University Grants Commission Act, 1974 (XXIII of 1974), or any other law for the time being in force;" and

(b) in sub-section (1A),-

(i) for clauses (h), (i) and (j) the following shall be substituted, namely:-

"(h) as been convicted by a court of competent jurisdiction on a charge of corrupt practice, moral turpitude or misuse of power or authority under any law for the time being in force; or

(i) as been dismissed from the service of Pakistan or service of a corporation or office set up or controlled by provincial Government or a local government on grounds of misconduct or moral turpitude; or

(j) as been removed or compulsorily retired from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a local government on grounds of misconduct or moral turpitude; or"; and

(ii) in clause (q), for the full stop at the end a semi-colon and word ";or" shall be substituted and thereafter the following new clauses shall be added, namely:-

"(r) has been convicted and sentenced to imprisonment for having absconded by a competent court under any law for the time being in force; or

(s) has obtained a loan for an amount of two million rupees or more, from any bank, financial institution, cooperative society or cooperative body in his own name or in the name of his spouse or any of his dependents, which remains unpaid for more than one year from the due date, or has had such loan written off; or

(t) he or his spouse or any of his dependents is in default in payment of government dues or utility expenses, including telephone, electricity, gas and water charges of an amount in excess of ten thousand rupees, for over six months, at the time of filing of nomination papers of such person."

20. Amendment of section 100 Act LXXXV of 1976. In the Said Act, in section 100, in sub-section (1), for the words "convicted" for any", the words and figures "convicted for having

exceeded the limit of election expenses in section 49 or having failed to file the return of election expenses in accordance with section 50 or for any other" shall be substituted.
